

THE NCA HUB

Examination Preparation

CANADIAN PROPERTY LAW EXAM TEMPLATES

32 IRAC Templates | Full Analytical Frameworks | Sample Exam Scenario Walkthroughs

NCA Syllabus: Revised for October 2025 | Ziff's 8th ed. | Open-Book | 3 Hours

© 2026 The NCA Hub | www.thencahub.com | All Rights Reserved

HOW TO USE THESE TEMPLATES

These 32 IRAC templates cover every testable doctrine on the NCA Canadian Property Law syllabus (Revised for October 2025). Each template provides: a USE WHEN trigger; an ISSUE formulation; a RULE statement with required case names; an APPLICATION framework; and a CONCLUSION shell. The Property exam rewards breadth — always identify every issue in the fact pattern before writing.

PARAMETER	DETAIL
Exam Format	Open-book, hard copy only. 3 hours. ~4-5 questions, 100 marks. Pass = 50%.
Citation Style	Case name alone is sufficient ('Tsilhqot'in Nation v BC' not the full citation).
Standard Assumptions	(a) Common law RAP applies — no statutory reforms; (b) Transfer without words of limitation = fee simple; (c) Two or more persons = tenancy in common unless contrary intention; (d) Adverse possession = 10 years.
Exam Style	Problem-based. Deploy facts in analysis. 'Because the hut sits on 8 logs and is disconnected from electricity...' earns marks. Identify uncertainty. Argue both sides where law is uncertain.
Critical Exam Skill	'Identify RELEVANT uncertainty on the facts and in the law. Consider all plausible arguments and plausible alternative outcomes even if convinced there is only one correct answer.' — NCA sample exam instructions (both sample exams). You earn marks for this.

TABLE OF CONTENTS — 32 TEMPLATES IN 7 PARTS

TPL	TOPIC	SYLLABUS AREA
1	Master Property Law Opener — Five Questions Framework	All Topics
2	Issue-Spotter Checklist — Trigger Words	All Topics
3	Will Interpretation Framework — Multi-Clause Analysis	Estates (Topic 4)
4	Fee Simple — Creation, Presumption, Statutory Reform	Estates (Topic 4)
5	Life Estate — Creation, Waste, Sequential Ownership	Estates (Topic 4)
6	Determinable vs Conditional Estates	Topic 7
7	Rule Against Perpetuities — Common Law Test	Topic 7
8	Invalidity — Public Policy, Uncertainty, Restraint on Alienation	Topic 7
9	The Latin Maxim — Airspace and Subsurface Rights	Topic 2
10	Fixtures — Two-Part Test	Topic 2
11	Accretion and Riparian Boundaries	Topic 2
12	Constructive Taking — Annapolis Group Framework	Topic 1
13	Finders — Parker v British Airways Framework	Topic 3
14	Gifts Inter Vivos — Delivery Requirement	Topic 3
15	Bailment — Types, Duties, Sub-Bailment	Topic 3
16	Aboriginal Title — Tsilhqot'in Proof and Content	Topic 5
17	Duty to Consult — Pre-Recognition Spectrum	Topic 5
18	Indian Act Reserves and Modern Treaties (Nisga'a)	Topic 5
19	Statute of Uses — Executed Uses and Modern Trust	Topic 6
20	Express and Resulting Trusts — Pecore	Topic 6
21	Remedial Constructive Trust — Pettkus, Kerr v Baranow JFV	Topic 6

22	Easements — Four Requirements and Creation	Topic 10
23	Easement Scope, Harris v Flower Rule, Termination	Topic 10
24	Restrictive Covenants — Tulk v Moxhay	Topic 10
25	Positive Covenants — Durham and the Canadian Rule	Topic 10
26	Profit à Prendre	Topic 10
27	Lease vs Licence — Dual Nature	Topic 8
28	Assignment vs Sublease — Spencer's Case and Richfield	Topic 8
29	Landlord Remedies on Repudiation — Highway Properties	Topic 8
30	Joint Tenancy — Four Unities and Severance	Topic 9
31	Priorities — Four Common Law Contests and Bona Fide Purchaser	Topic 11
32	Torrens Title — Indefeasibility, Fraud Exception, Curtain	Topic 11

PART A — UNIVERSAL STARTERS

Template 1 — Master Property Law Opener — The Five Questions Framework

USE WHEN	Use at the start of every property law answer to survey all issues before writing. Property rewards BREADTH — flagging all five questions upfront proves you have covered the entire legal landscape.
ISSUE	The issues in this problem concern [NATURE OF DISPUTE — boundaries / title / servitudes / priorities / equitable interests] in respect of [DESCRIBE THE LAND/CHATTELS]. The analysis proceeds through the five property law questions: (1) Who owns what and what is the scope of that interest? (2) Is the interest valid? (3) Does the interest bind third parties? (4) What are the ongoing rights and obligations of the current holders? (5) What remedies are available?
RULE	PROPERTY ANALYSIS IN FIVE STEPS: (1) IDENTIFY THE INTEREST — estate (fee simple, life estate, leasehold), non-possessory interest (easement, restrictive covenant, profit), equitable interest (trust, constructive trust), or possessory right (finder's title, bailment). (2) VALIDATE THE INTEREST — conditions (precedent, subsequent, determinable); Rule Against Perpetuities; public policy; certainty; restraints on alienation. (3) THIRD-PARTY EFFECT — legal vs equitable; bona fide purchaser defence; deeds registration (race/notice/race-notice); Torrens indefeasibility and the curtain principle; unregistered interests generally do NOT bind a registered owner; fraud exception. (4) RIGHTS AND OBLIGATIONS — life tenant's waste; co-owner's duty to account; landlord-tenant covenants; easement scope limitations (Harris v Flower). (5) REMEDIES — injunction; damages; partition or sale; specific performance; constructive trust; trespass remedies.
CONCLUSION	Applying the five-question framework: [1 — interests identified and labelled; 2 — validity assessed including RAP and public policy; 3 — third-party effect under common law or Torrens; 4 — ongoing rights and obligations; 5 — available remedies for each party].

⚠ **EXAM TIP** — IDENTIFY UNCERTAINTY — YOU EARN MARKS FOR IT. Both NCA Property sample exams instruct: 'Identify RELEVANT uncertainty on the facts and in the law. Consider all plausible arguments and plausible alternative outcomes even if you are convinced there is only one correct answer.' Where an issue can go either way, state both conclusions and their consequences.

Template 2 — Issue-Spotter Checklist — Trigger Words

USE WHEN	Use in the first 3-4 minutes of the exam to scan the fact pattern and flag every issue. The Property exam embeds 5-8 legal issues in each major question. Missing any costs marks regardless of how well you handle the ones you identify.
TRIGGER WORD / FACT	ISSUES IN PLAY — CHECK EACH
"will" / "died" / testator named	Estates: fee simple (presumption); life estate? Words of limitation? Conditions: precedent / subsequent / determinable — certain? Public policy? Restraint on alienation? RAP: apply to each contingent interest. Waste obligations for life tenant.

"lake receded" / "river shifted"	Accretion (Blewman): gradual recession = boundary follows water. Avulsion: sudden = boundary stays. Riparian rights (R v Nikal). Crown owns beds of navigable rivers.
"object attached to" / "hut on logs"	Fixtures (La Salle Recreations; Scott v Filipovic): TWO PARTS — (1) degree of annexation; (2) PURPOSE of annexation (more important). Tenant's fixtures: may remove before lease expires. Security interest: conditional sale / PPSA vs fixture status.
"found" / "picked up" / "discovered"	Finders (Parker v British Airways): finder acquires title vs true owner; finder vs occupier (occupier must have manifested clear intention to control AND exercised it). Pre-possessionary interest (Popov). Abandonment vs lost vs mislaid vs concealed (Stewart v Gustafson).
"gift" / "gave" / "transferred without payment"	Gifts inter vivos (Thomas v Times Book Co): donative intent + delivery (actual, symbolic where impractical, constructive) + acceptance. Resulting trust (Pecore): parent → adult child = presumption of resulting trust NOT gift. Donatio mortis causa (Re Bayoff Estate).
"stored with" / "left for repair"	Bailment (Punch v Savoy): establish nature (mutual benefit = ordinary care). Burden shifts to bailee on proof of loss. Sub-bailment (Pioneer Container): sub-bailee directly liable to original bailor.
"joint tenants" / "to X and Y"	DEFAULT = TENANCY IN COMMON (exam assumption). For joint tenancy: must state "as joint tenants" AND all four unities (PITT) present. Survivorship: joint tenant cannot pass interest by will. Severance (Williams v Hensman): unilateral act / mutual agreement / course of conduct.
"leased" / "tenant" / "assigned"	Lease type (term certain, periodic, at will, at sufferance). Assignment (ENTIRE remaining term) vs sublease (LESS than entire). Spencer's Case: covenants touch and concern → run to assignee. Richfield: tenant gave up right → landlord may refuse arbitrarily. Highway Properties: three remedies on repudiation.
"right of way" / "access over neighbour's land"	Easement (Re Ellenborough Park four requirements). Creation: express / implied necessity (common grantor required) / Wheeldon v Burrows. Scope: Harris v Flower (not for non-dominant land). Termination: unity of seisin / release / abandonment (Bairn).
"not to build" / "restricted to" / "covenant"	Restrictive covenant (Tulk v Moxhay): NEGATIVE in substance; benefits land retained by covenantee; intended to run; notice. Positive covenant (Durham): does NOT run with freehold land in Canada. Bypass options (chain of indemnity; long lease; benefit-burden: Halsall v Brizell; building scheme: Berry).
"government refused permit" / "regulation prevents development"	Constructive taking (Annapolis): (1) state acquired advantage from regulation? (2) all reasonable uses removed? Intention of authority is relevant.
"Aboriginal" / "First Nations" / "Indigenous claim"	Tsilhqot'in: sufficiency + continuity + exclusivity → Aboriginal title. Rights short of title (Van der Peet — no exclusive possession required). Duty to consult (Haida — spectrum). Indian Act reserves (Certificates of Possession). Modern treaties (Nisga'a — SBC 1999, c 2).
"common law partners" / "unmarried couple separating"	JFV (Kerr v Baranow four factors: mutual effort, economic integration, actual intent, priority of family). Unjust enrichment three elements. Remedy: value survived (JFV) / quantum meruit (no JFV) / remedial constructive trust (causal link to specific property + monetary inadequate).
"registered" / "land titles" / "Torrens"	Three principles: mirror, curtain, net. Indefeasibility: immediate (Ontario) vs deferred. Fraud exception (actual knowledge). Curtain: unregistered interests generally not binding. Assurance Fund. Chippewas of Sarnia: Aboriginal title vs Torrens registered private title.
"mines and minerals" / "subsurface" / "drilling"	Latin maxim: ownership extends downward. Mineral rights can be severed (separate estate from surface). Profit à prendre: right to take from another's land; can be held IN GROSS (no dominant tenement required). Lease vs profit: exclusive possession for a term = lease; right to take = profit.

PART B — ESTATES AND FUTURE INTERESTS

Template 3 — Will Interpretation Framework

USE WHEN	Use for EVERY will interpretation question. The will interpretation question is always the highest-value question (25-30 marks). Apply this framework clause by clause, in order.
ISSUE	The issue is the proper interpretation of [TESTATOR]'s will and the legal effect of each clause — specifically the nature, duration, and validity of each interest created or devised.
RULE	WILL INTERPRETATION — GOVERNING PRINCIPLES: (1) The court gives effect to the TESTATOR'S INTENTION, deduced from the entire instrument (Re Walker [1925]). (2) No clause is read in isolation. (3) EXAM ASSUMPTIONS: (a) Transfer without words of limitation = fee simple. (b) Two or more persons = tenancy in common unless contrary intention. (c) Common law RAP applies. (d) Adverse possession = 10 years. (4) RAP: Contingent interests must vest, if at all, within LIVES IN BEING at death of testator + 21 years. The "worst case" test: if it is POSSIBLE (not probable) that the interest fails to vest within the period → VOID. (5) VOID CONDITION SUBSEQUENT → generally the gift stands free of the void condition (grantee takes in fee simple absolute). VOID CONDITION PRECEDENT → the entire gift fails. (6) IDENTIFY UNCERTAINTY.
STEP 1 — IDENTIFY THE INTEREST	STEP 1: Clause [X] gives '[QUOTE EXACT LANGUAGE]'. [PARTY] takes [a life estate / a fee simple] under the statutory presumption. KEY distinguishing words: determinable = "while/until/so long as"; condition subsequent = "but if/on condition that/provided that/if"; condition precedent = "if/when X occurs."
STEP 2 — RAP	STEP 2: Is the interest CONTINGENT? Identify the MEASURING LIVES (all persons alive at the testator's death who are relevant to vesting). Could an AFTERBORN PERSON take the interest? WORST CASE TEST: Imagine all measuring lives die immediately after the testator. Must the interest vest (or fail) within 21 years? If YES → VALID. If NO → VOID. REMEMBER: The fertile octogenarian rule — any living person is presumed capable of having children.
STEP 3 — INVALIDITY	STEP 3: CERTAINTY (H.J. Hayes v Meade): Is the condition sufficiently definite that a court can determine whether it has been breached? PUBLIC POLICY (Leonard Foundation; McCorkill; Spence; MacDonald v Brown Estate 1995 NS SC): Does the condition discriminate based on race, religion, national origin, or other protected ground? RESTRAINT ON ALIENATION (Blackburn v McCallum): Total prohibition on alienation of a fee simple = void.
STEP 4 — CONSEQUENCES	STEP 4: [IF CONDITION SUBSEQUENT IS VOID]: [PARTY] takes the interest FREE of the condition — in fee simple absolute. ALTERNATIVE ARGUMENT: If the condition was so central to the testator's intention that they would not have made the gift without it, the entire gift may fail. Identify and argue both outcomes. [IF CONDITION PRECEDENT IS VOID]: The contingent interest fails. The property falls into residue or passes by intestacy.

**STEP 5 —
REMAINDER/REVERSION**

STEP 5: If [PARTY A] holds [a life estate], someone holds the fee simple reversion or remainder. [IF A SPECIFIC REMAINDERMAN IS NAMED]: [PARTY B] holds [a vested remainder / contingent remainder] in fee simple. [IF NO REMAINDER NAMED]: The property reverts to the testator's estate under the residue clause or by intestacy.

**STEP 6 —
JT or TIC**

STEP 6: [WHERE MULTIPLE DEVISEES]: Default = TENANCY IN COMMON. [CHECK FOR INCONSISTENCY]: A gift "to A as to one-third and B as to two-thirds as joint tenants" is internally contradictory — unequal shares are inconsistent with joint tenancy (which requires unity of interest = equal shares). Resolve in favour of tenancy in common. Identify this inconsistency if present.

CONCLUSION

Clause [X]: [PARTY] takes [estate type] because [reason from the will + statutory assumption]. The condition [is / is not] valid. [If void condition subsequent]: [PARTY] takes free of the void condition in fee simple absolute. [If void condition precedent]: The gift fails. The CURRENT STATE OF TITLE to [PROPERTY] is: [summarise who holds what interest].

⚠ **EXAM TIP** — NEVER RUSH THE Q1 WILL QUESTION. The will question (Q1, 25-30 marks) is worth ~18 minutes per clause for a typical 3-clause will. Apply every step of this template to every clause. Always state the CURRENT STATE OF TITLE at the end.

Template 4 — Fee Simple — Creation, Presumption, and Statutory Reform**USE WHEN**

Use whenever a will or conveyance must be interpreted to determine the nature of the estate granted. Always the first analysis in any estates question.

ISSUE

The issue is whether [PARTY]'s interest is a FEE SIMPLE ABSOLUTE — the largest estate in land — or a lesser interest, and how this estate was created and may be transferred.

RULE

THE FEE SIMPLE ABSOLUTE: Potentially infinite duration. No restriction on who can inherit. Holder can use, enjoy, encumber, transfer, and devise the land without limitation. CREATION AT COMMON LAW: Required "magic words" — "to A and his heirs." Without these words, only a life estate was created at common law. STATUTORY REFORM (EXAM ASSUMPTION): "A devise or transfer of land WITHOUT WORDS OF LIMITATION confers upon the recipient the ENTIRE INTEREST held by the testator or grantor, unless a contrary intention appears in the instrument." ON THIS EXAM, PRESUME FEE SIMPLE unless the instrument shows contrary intention. SHOWING "CONTRARY INTENTION": (a) express words of limitation ("for life"; "until she remarries"); (b) obligations inconsistent with fee simple ownership ("she shall keep the house in repair and pay the taxes" — consistent with life estate, not fee simple: Re Taylor); (c) direction that property pass to others on an event consistent with a limited estate.

CONCLUSION

[PARTY] holds [a fee simple absolute / a life estate / a lesser interest] in [PROPERTY] because [reason from instrument + statutory presumption / evidence of contrary intention]. Proceed to Templates 6 and 7 if conditions are present.

Template 5 — Life Estate — Creation, Waste, and Sequential Ownership**USE WHEN**

Use when a will or conveyance creates a life estate, especially in combination with a remainder. Waste is the most tested aspect of the life estate on the NCA exam.

ISSUE

The issue is whether [PARTY A] holds a LIFE ESTATE in [PROPERTY], what rights and obligations attach to that estate, and who holds the remainder or reversion after [PARTY A]'s death.

RULE

LIFE ESTATE: An estate for the duration of a specified life. On the death of the measuring life, the estate ends automatically. PUR AUTRE VIE: A life estate measured by a life other than the holder's. If A dies before B, A's interest passes through A's estate. Re Walker [1925] ONT: Will interpreted as a whole — no clause is read in isolation. Re Taylor 1972 ONT SC: "She is to keep house in repair and pay property taxes" = obligations consistent with a life estate, not fee simple. FOUR TYPES OF WASTE: (1) VOLUNTARY WASTE: Affirmative acts of damage — cutting timber beyond personal use; removing fixtures; opening new mines (using existing mines = not waste). LIFE TENANT IS LIABLE. (2) PERMISSIVE WASTE: Failure to maintain. Life tenant is liable ONLY IF the instrument expressly imposes a duty of maintenance. (3) AMELIORATING WASTE: Acts that change the character but increase value. Courts generally do not enjoin. (4) EQUITABLE WASTE: Wanton destruction — equity may enjoin even if life tenant is "unimpeachable for waste" at law. REMEDIES FOR WASTE: Injunction; damages. The remainderman has standing.

CONCLUSION

[PARTY A] holds a LIFE ESTATE in [PROPERTY] — not a fee simple. [PARTY B] holds a [vested / contingent] remainder [subject to RAP analysis]. [PARTY A] [is / is not] liable for [voluntary / permissive] waste because [reason from the instrument].

PART C — CONDITIONAL TRANSFERS AND FUTURE INTERESTS

Template 6 — Determinable vs Conditional Estates

USE WHEN

Use whenever a grant or devise contains conditional language — "while," "until," "so long as," "but if," "on condition that," "provided that." The distinction determines what the grantor retains and whether the estate ends automatically or requires election.

ISSUE

The issue is whether the conditional language creates a DETERMINABLE estate (automatically reverts on occurrence of the limiting event) or a CONDITIONAL estate subject to a condition subsequent (may be cut short by the grantor's exercise of a power of re-entry).

RULE

DETERMINABLE ESTATE: Estate ends AUTOMATICALLY when the limiting event occurs — no action by the grantor required. LANGUAGE: Temporal words — "while," "so long as," "until," "during." GRANTOR RETAINS: A POSSIBILITY OF REVERTER. *Ottawa (City) v Clublink Corp* 2021 ONCA: A grantor's possibility of reverter following a determinable fee simple remains enforceable by the grantor's successors in title when the limiting condition is breached. CONDITIONAL ESTATE — CONDITION SUBSEQUENT: The estate is granted absolutely but may be cut short by the grantor's election on breach. LANGUAGE: Defeasance words — "but if," "on condition that," "provided that." GRANTOR RETAINS: A RIGHT OF RE-ENTRY. CONDITION PRECEDENT: "To A if/when X occurs." The interest does NOT vest until the condition is satisfied. CONSEQUENCES OF INVALID CONDITION: VOID CONDITION SUBSEQUENT → gift generally takes effect FREE OF THE CONDITION (grantee takes in fee simple absolute). VOID DETERMINABLE LIMITATION → grantee takes in fee simple absolute. VOID CONDITION PRECEDENT → the entire gift fails.

CONCLUSION

The interest given to [PARTY] is a [DETERMINABLE FEE SIMPLE / CONDITIONAL FEE SIMPLE SUBJECT TO CONDITION SUBSEQUENT / CONDITIONAL FEE SIMPLE SUBJECT TO CONDITION PRECEDENT]. [GRANTOR/ESTATE] retains a [possibility of reverter / right of re-entry]. The condition [is / is not] valid. If invalid: [PARTY] takes [free of the condition, in fee simple absolute (condition subsequent) / nothing — the entire gift fails (condition precedent)].

⚠ **EXAM TIP** — DETERMINABLE vs CONDITION SUBSEQUENT — THE LANGUAGE IS KEY. Does the limiting language DESCRIBE THE DURATION of the estate (determinable — "while," "so long as") or does it IMPOSE A CONDITION ON AN OTHERWISE GRANTED ESTATE (condition subsequent — "but if," "on condition that")? The consequences differ critically: automatic expiry vs election; possibility of reverter vs right of re-entry.

Template 7 — Rule Against Perpetuities — Common Law Test (Step by Step)

USE WHEN

Apply to EVERY contingent interest in a will or conveyance. The RAP appears in every NCA Property exam will question. EXAM ASSUMPTION — common law RAP applies; no statutory reforms. Apply the "worst case" test mechanically.

ISSUE

The issue is whether [INTEREST] — a contingent interest in [PROPERTY] — violates

the Rule Against Perpetuities, rendering it void.

RULE

COMMON LAW RULE AGAINST PERPETUITIES: RULE: No interest in property is valid unless it must vest, IF AT ALL, within the perpetuity period. THE PERPETUITY PERIOD = LIVES IN BEING + 21 YEARS: "Lives in being": persons alive at the date of the testator's death (for wills). The "worst case" test: Ask: Is it POSSIBLE (even if highly improbable) that the interest might NOT vest within the perpetuity period? If YES → VOID. THE FERTILE OCTOGENARIAN: Any living person is presumed capable of having children under the common law RAP — an afterborn child is always possible for a living person. THE UNBORN WIDOW: A gift "to the widow of my son John, if and when she survives John" — John's widow might be an afterborn person (John might marry after the testator's death). The widow's interest may vest on John's death + an indeterminate period = potentially beyond lives in being + 21 years → VOID. CLASS GIFTS — ALL OR NOTHING: A contingent class gift is void if there is any possibility that any member of the class could satisfy the condition outside the perpetuity period. If the class is struck, the ENTIRE class gift fails.

STEP 1

STEP 1: Is the interest CONTINGENT? The RAP does not apply to vested interests. [IF VESTED]: End of RAP analysis.

STEP 2

STEP 2: IDENTIFY THE MEASURING LIVES: All persons alive at the testator's death who are expressly or impliedly connected to the vesting of this interest. [LIST ALL RELEVANT PERSONS ALIVE AT TESTATOR'S DEATH].

STEP 3

STEP 3: COULD AN AFTERBORN PERSON TAKE? [IF YES]: Those afterborn persons are NOT lives in being. The 21-year clock runs from the death of the last surviving life in being. WORST CASE: Imagine the measuring life(s) die immediately after the testator. The afterborn person is then born immediately. Can that afterborn person satisfy the condition within 21 years of the last measuring life's death? If NO → VOID. [IF NO AFTERBORN POSSIBLE]: Class closes at death; each identified person will satisfy the condition or not within their own lifetime (a life in being) → VALID.

CONCLUSION

The interest [IS / IS NOT] void under the Rule Against Perpetuities. [VALID]: Because the interest must vest (if at all) within [MEASURING LIFE]'s lifetime (a life in being at the testator's death). [VOID]: Because it is possible that the interest vests more than [lives in being + 21 years] after the testator's death — specifically, [describe the worst case scenario]. The void interest [falls into residue / returns to the estate].

△ **EXAM TIP** — THE FERTILE OCTOGENARIAN AND THE UNBORN WIDOW. (1) "The fertile octogenarian": Even an 80-year-old is presumed capable of having children under the common law RAP. (2) "The unborn widow": A gift "to the widow of my son John, if and when she survives John" — John's widow might be an afterborn person (John might marry after the testator's death). The widow's interest may vest on John's death + an indeterminate period = potentially beyond lives in being + 21 years → VOID.

Template 8 — Invalidity — Public Policy, Uncertainty, and Restraint on Alienation

USE WHEN	Use after classifying the conditional interest (Template 6). Apply to test whether the condition itself is void on grounds other than the RAP. Public policy is the most frequently tested ground on this exam.
ISSUE	The issue is whether the condition on [PARTY]'s interest is invalid on grounds of [public policy / uncertainty / restraint on alienation], and if so, what consequence follows.
RULE	GROUND 1 — PUBLIC POLICY: Canada Trust Co v Ontario HRC (Leonard Foundation) 1990 ONCA: Conditions based on RACE, RELIGION, NATIONAL ORIGIN, or other protected characteristics are contrary to public policy. McCorkill v Streed 2014 NBQB: Bequest to neo-Nazi organisation = void. Spence v BMO Trust 2016 ONCA: A racial condition in a will = void as contrary to public policy. MacDonald v Brown Estate 1995 NS SC: A TOTAL prohibition on marriage is void. A PARTIAL restriction (e.g., "if she marries before age 25") may be valid. GROUND 2 — UNCERTAINTY: H.J. Hayes Company v Meade 1987 NB KB: The condition must be sufficiently certain that a court can determine whether it has been breached. For CONDITION SUBSEQUENT: the test is strict. For CONDITION PRECEDENT: somewhat more flexibility. GROUND 3 — RESTRAINT ON ALIENATION: Blackburn v McCallum 1903 SCC: A total prohibition on the alienation of a fee simple is void. PARTIAL restraints may be valid depending on degree.
CONCLUSION	The condition '[QUOTE]' [is / is not] void on the ground of [public policy / uncertainty / restraint on alienation]. [If void]: [PARTY] takes [free of the condition in fee simple absolute (condition subsequent) / nothing (condition precedent)]. [If not void]: The condition remains in force.

PART C — BOUNDARIES OF PROPERTY AND POSSESSION

Template 9 — The Latin Maxim — Airspace and Subsurface Rights

USE WHEN	Use whenever a question involves the extent of a landowner's rights above or below the surface — power lines, aircraft, underground caves, mineral rights. Both sample exam Q2s involve airspace/subsurface issues.
ISSUE	The issue is the physical extent of [PARTY]'s ownership rights in [PROPERTY] — specifically, whether those rights extend to [the airspace above / the subsurface below] the surface, and the consequences of [PARTY B]'s [power lines / cave extension / mining] in that space.
RULE	THE LATIN MAXIM: Cuius est solum, ejus est usque ad coelum et ad inferos — "Whoever owns the soil owns [the land] up to the heavens and down to the depths of the earth." THIS MAXIM IS NOT ABSOLUTE. AIRSPACE RIGHTS (Didow v Alberta Power 1988 ABCA): A landowner has rights in the airspace above their land — unauthorised entry into that airspace constitutes TRESPASS. Rights extend as high as is reasonably necessary for the use and enjoyment of the land and the structures on it. Didow: Power lines crossing airspace = trespass. The landowner does not need to prove damage — trespass to the airspace is itself actionable. Statutory limits: Aeronautics Act permits aircraft to fly at reasonable heights without consent. SUBSURFACE RIGHTS: Ownership extends downward. Mineral rights are generally included UNLESS separately severed or reserved. MacKenzie v Alberta (Registrar) 2022 ABCA 277 (paras 30-33): Mineral interests can be held as a distinct freehold estate separate from the surface.
CONCLUSION	[PARTY A]'s ownership of [PROPERTY] extends [upward / downward] under the Latin maxim (cuius est solum). [PARTY B]'s [power lines / cave operations / underground construction] in that zone constitutes TRESPASS to [PARTY A]'s land (Didow). [PARTY A]'s remedies: (a) injunction to require removal; (b) damages for the trespass. [LIMITATIONS ON THE MAXIM]: Specific statutory or practical limits apply.

Template 10 — Fixtures — The Two-Part Test

USE WHEN	Use whenever a question involves whether an object associated with land is a fixture (part of the realty) or a chattel (personal property). Appears on EVERY sample exam. Always apply BOTH parts of the test.
ISSUE	The issue is whether [THE OBJECT — hut / lockers / machinery / equipment] constitutes a FIXTURE — part of the realty passing with the land — or remains a CHATTEL — personal property owned separately from the land.
RULE	THE TWO-PART FIXTURES TEST: (1) DEGREE OF ANNEXATION: How firmly is the object attached to the land or structure? An object resting on its own weight alone tends to remain a chattel. An object bolted, screwed, cemented, or embedded into the

structure tends to be a fixture. BUT: this is merely the STARTING POINT. (2) PURPOSE OF ANNEXATION (THE DOMINANT TEST): Was the object annexed to make it a permanent part of the realty (fixture) — or merely to enable better enjoyment of the object itself as a chattel while remaining in place? This second test DOMINATES. LA SALLE RECREATIONS v CANADIAN CAMDEX 1969 BCCA: Laundry machines physically attached BUT purpose was to use them as laundry equipment (chattel use) → CHATTELS. SCOTT v FILIPOVIC 2015 BCCA: Purpose of annexation assessed objectively from the perspective of a reasonable observer. TENANT'S FIXTURES: Trade fixtures and ornamental fixtures may be removed by the tenant BEFORE THE LEASE EXPIRES, provided removal can be done without substantial damage. Failure to remove before lease expiry → fixtures become the landlord's property. SECURITY INTEREST INTERACTION: Where a chattel is subject to a PPSA registration or conditional sale clause, the security interest may persist even after the chattel becomes a fixture. Scott v Filipovic addresses this interaction.

CONCLUSION

[THE OBJECT] is a [FIXTURE / CHATTEL]. DEGREE OF ANNEXATION: [moderate/substantial/minimal] physical attachment. PURPOSE OF ANNEXATION: [the dominant purpose was [permanent improvement to the realty / better use of the chattel itself]] → [fixture / chattel]. [If chattel]: [OBJECT] remains personal property. [If fixture]: [OBJECT] passes with the real property and belongs to the landowner.

⚠ **EXAM TIP** — FIXTURES IS TESTED ON EVERY EXAM. Always apply BOTH parts of the test — degree of annexation is just the starting point; PURPOSE is determinative. Then check for tenant's fixture rules and security interest interactions.

Template 11 — Accretion and Riparian Boundaries**USE WHEN**

Use whenever land is bounded by water and the water boundary has shifted. 2022 Sample Exam Q2: Shallow Lake receded over 20 years — classic accretion scenario.

ISSUE

The issue is the legal boundary of [PARTY A]'s land — specifically whether the gradual [recession / advancement] of [BODY OF WATER] has altered the boundary of [PARTY A]'s title by accretion.

RULE

ACCRETION (Blewman v Wilkinson [1979] NZCA — assigned): Where the boundary of land is a water feature, the boundary shifts NATURALLY AND IMPERCEPTIBLY over time in accordance with the movement of the water. GRADUAL AND IMPERCEPTIBLE RECESSION: Where water gradually withdraws, the boundary follows the water's edge. The landowner gains title to the newly exposed land by accretion. "Imperceptible" means imperceptible from day to day — not that it is imperceptible in the aggregate over years. AVULSION — THE EXCEPTION: Where a water boundary shifts SUDDENLY (e.g., through a storm or flood), the boundary does NOT follow the water. The boundary stays at its pre-event location. R v Nikal [1996] 1 SCR 1013: Crown ownership of navigable river beds; riparian rights; Aboriginal fishing rights. CROWN OWNERSHIP OF RIVER BEDS: The beds of NAVIGABLE rivers belong to the Crown. Riparian landowners own to the ordinary high-water mark (or to the middle of the stream for non-navigable rivers).

CONCLUSION

[PARTY A]'s boundary has shifted [outward / inward] by accretion — the gradual and imperceptible [recession / advancement] of [BODY OF WATER] over [TIME PERIOD]. [PARTY A] has [gained / lost] title to [DESCRIBE LAND]. [AVULSION EXCEPTION does / does not apply] — the movement was [gradual / sudden].

Template 12 — Constructive Taking — Annapolis Group Framework**USE WHEN**

Use whenever government regulation prevents a landowner from using their land in the way they intended. Apply the two-part Annapolis test carefully.

ISSUE

The issue is whether [GOVERNMENT AUTHORITY]'s regulatory measures — specifically [DESCRIBE: zoning / permit refusal / development moratorium] — constitute a CONSTRUCTIVE TAKING (de facto expropriation) of [PARTY]'s property, entitling [PARTY] to compensation.

RULE

CONSTRUCTIVE TAKING (DE FACTO EXPROPRIATION): Annapolis Group Inc v Halifax Regional Municipality 2022 SCC 36 (5-4 majority, Wagner CJ). ORIGINAL TEST (Canadian Pacific Railway v Vancouver (City of) 2006 SCC 5): (1) The government acquired a BENEFICIAL INTEREST in the property or flowing from it; AND (2) The regulation removed ALL REASONABLE USES of the property. ANNAPOLIS CLARIFICATION (5-4 majority, Wagner CJ): "Beneficial interest" = an ADVANTAGE accruing to the state. The state does NOT need to acquire a proprietary interest in the land — no physical taking or acquisition of legal title required. The INTENTION of the public authority is relevant. NON-EXHAUSTIVE FACTORS: The nature of the land and its historical uses; whether the regulation targets a specific landowner or advances a general public policy objective; whether notice was given; the relative social utility of the restriction vs its impact on the owner. DISSENT (Karakatsanis J, 4 judges): "Beneficial interest" should require acquisition of an interest corresponding to the deprivation suffered by the owner.

CONCLUSION

[AUTHORITY]'s regulatory measures [do / do not] constitute a constructive taking. ELEMENT 1 — Advantage to state: [the Authority obtained an advantage / no advantage was acquired]. ELEMENT 2 — All reasonable uses removed: [all reasonable uses were removed / some uses remain]. [IF BOTH ELEMENTS MET]: A constructive taking has occurred. [PARTY] is entitled to compensation as if the land had been formally expropriated. [IF NOT MET]: No constructive taking.

PART D — POSSESSION

Template 13 — Finders — Parker v British Airways Framework

USE WHEN	Use whenever someone finds a chattel and a dispute arises over who has the better right to it. Classic contexts: object found on another's land; object found in a business premises; object found on Crown land.
ISSUE	The issue is who has the superior right to [THE FOUND OBJECT] — specifically, whether [FINDER] has a better title to [THE OBJECT] than [TRUE OWNER / OCCUPIER OF PREMISES / PRIOR POSSESSOR].
RULE	PARKER v BRITISH AIRWAYS BOARD [1982] UK CA: (1) A FINDER acquires title to a lost chattel good against all the world EXCEPT the true owner. (2) The finder's title is RELATIVE — better than all except the true owner. (3) The finder's right is DISPLACED by the OCCUPIER of the premises if the occupier has: (a) Manifested a CLEAR INTENTION to exercise control over the premises AND everything found on/in them (BEFORE the finding); AND (b) Actually EXERCISED that control. British Airways had not taken steps to assert control → Parker prevailed. PRIOR POSSESSION (Armory v Delamirie (1722)): A chimney sweep's boy found a jewel. He brought it to a goldsmith's shop where the goldsmith's apprentice, while pretending to weigh the jewel to assess it, removed the stones and kept them. HELD: The chimney sweep's boy had possessory title good against all except the true owner — including against the goldsmith. A prior possessor has better title than a subsequent possessor. TRACHUK v OLINEK 1995 AB KB: Money found in a business parking lot — the business owner had not taken steps to control objects on the lot → finder prevails. STEWART v GUSTAFSON 1998 SK KB: Money deliberately concealed (buried) in a farmer's field — deliberately concealed property is NOT "lost" in the Parker sense. The landowner, as occupier of private agricultural land, had a better right than the finder. POPOV v HAYASHI 2002 (California): PRE-POSSESSORY INTEREST — where a finder took significant steps toward possession but was unlawfully prevented from completing it, equity may divide the proceeds proportionately.
STEP 1 — Lost, Mislaid, or Concealed?	[LOST (owner has no knowledge of where it is)]: The true owner retains ownership. The finder has title good against all except the true owner. [MISLAID (owner knows where they put it)]: The occupier of the premises has the better right to hold the object for the true owner — not the finder. [ABANDONED (owner has given up ownership)]: The true owner has relinquished all rights. The first person to possess it acquires the best title. [CONCEALED/BURIED (deliberately hidden)]: The occupier/landowner has the better right than the finder (Stewart v Gustafson).
STEP 2 — Did the Occupier Assert Control?	[CLEAR INTENTION TO CONTROL — OCCUPIER PREVAILS]: Signs indicating "all lost property must be reported to the management"; staff actively collecting found items; a policy of control actively enforced. [NO CLEAR INTENTION — FINDER PREVAILS (Parker)]: Premises publicly accessible; no steps taken to assert control over objects found; no "found property" system in place.
STEP 3 — Pre- Possessory	[IF FINDER WAS UNLAWFULLY PREVENTED FROM COMPLETING POSSESSION]: Because [PARTY B] unlawfully prevented [PARTY A] from completing their possession of [THE OBJECT], [PARTY A] has a pre-possessionary interest. Equity may: (a) award full

**Interest
(Popov)**

title to [PARTY A]; (b) divide the value proportionately between [PARTY A] and whoever subsequently established possession (Popov: 50-50 split).

CONCLUSION

[FINDER] [has / does not have] the best title to [THE OBJECT]. [TRUE OWNER] retains superior title (if living and has not abandoned). [OCCUPIER's claim: occupier [did / did not] assert the necessary control (Parker) — occupier's claim [succeeds / fails]. [PARTY] has the best possessory title against [all other parties except TRUE OWNER].

Template 14 — Gifts Inter Vivos — Delivery Requirement**USE WHEN**

Use whenever a person claims to have received property as a gift and the validity of the gift is disputed. The 2025 sample exam Q4 True/False #1 directly tests symbolic delivery. Know all three types.

ISSUE

The issue is whether a valid gift inter vivos was made by [DONOR] to [DONEE] — specifically whether the THREE REQUIREMENTS of donative intent, delivery, and acceptance were satisfied.

RULE

THREE REQUIREMENTS FOR A VALID GIFT INTER VIVOS (Thomas v Times Book Company [1966] UK): (1) DONATIVE INTENT (animus donandi): The donor must intend to make a PRESENT, IRREVOCABLE gift — not a loan, a conditional transfer, or a future promise to give. (2) DELIVERY: Three forms: (a) ACTUAL DELIVERY: Physical transfer of the chattel from donor to donee. (b) CONSTRUCTIVE DELIVERY: Transfer of something representing dominion over the chattel (e.g., handing over the keys to a car or a locked box). (c) SYMBOLIC DELIVERY: Where actual delivery is IMPRACTICAL (the object is too large, is not present, or cannot be physically handed over), symbolic delivery substitutes — handing over a document of title, a receipt, or some symbolic item. 2025 Sample Exam Q4 True/False #1: "A gift of chattels may be made using symbolic delivery if actual delivery by the donor is impractical. TRUE." The answer is TRUE. Where actual manual delivery is impractical, symbolic delivery is a valid substitute. (3) ACCEPTANCE: The donee must accept the gift. Acceptance is generally presumed where the gift is beneficial. DONATIO MORTIS CAUSA (Re Bayoff Estate [2000] SKQB): Gift made in contemplation of imminent death. Requires: (a) made in contemplation of imminent death from a specific peril; (b) conditional on death occurring; (c) delivery of the subject matter or something representing dominion. If the donor recovers, the gift is revoked.

CONCLUSION

A valid gift inter vivos [was / was not] made. DONATIVE INTENT: [DONOR intended a present irrevocable gift / intent is disputed]. DELIVERY: [actual / constructive / symbolic delivery was effective / delivery was not made]. ACCEPTANCE: [accepted / not established]. [IF ALL THREE MET]: The gift is complete and irrevocable. [IF ANY ELEMENT FAILS]: No gift was made — [DONOR] or the estate retains ownership, subject to a possible resulting trust analysis (Pecore).

Template 15 — Bailment — Types, Duties, and Sub-Bailment

USE WHEN

Use whenever personal property is transferred by one person to another for a specific purpose, with an obligation to return. Most commonly tested in combination with finders questions or lease questions.

ISSUE

The issue is whether a BAILMENT was created between [BAILOR] and [BAILEE] in respect of [THE CHATTEL], and what standard of care [BAILEE] owed, whether [BAILEE] breached that duty, and (if applicable) the consequences of sub-bailment to [SUB-BAILEE].

RULE

BAILMENT: A temporary transfer of possession of a chattel by the owner (bailor) to another (bailee) for a specific purpose, with an obligation on the bailee to return the chattel. BAILMENT ≠ TRANSFER OF OWNERSHIP: The bailor retains title. STANDARD OF CARE — THREE TYPES: (1) BAILOR'S SOLE BENEFIT (gratuitous custody): Bailee owes only a duty NOT TO BE GROSSLY NEGLIGENT. (2) MUTUAL BENEFIT (commercial transaction — storage, repair): Bailee owes a duty of ORDINARY (REASONABLE) CARE. (3) BAILEE'S SOLE BENEFIT (bailee borrows the chattel): Bailee owes the HIGHEST DUTY OF CARE — liable for even slight negligence. PUNCH v SAVOY'S JEWELLERS 1986 ONCA: Commercial bailment (ring left for repair = mutual benefit). HELD: Once the bailor establishes the delivery and the loss, the BURDEN SHIFTS TO THE BAILEE to prove the loss occurred without negligence. The bailee cannot simply say "I don't know what happened." SUB-BAILMENT — THE PIONEER CONTAINER [1994] UKPC: Where the bailee further transfers possession to a third party (sub-bailee), the sub-bailee becomes directly responsible to the original bailor. The sub-bailee takes the goods subject to the original bailor's right to have them returned in the same condition.

CONCLUSION

A [mutual benefit / gratuitous / bailee's benefit] bailment was created between [BAILOR] and [BAILEE]. [BAILEE] owed a duty of [ordinary care / non-gross negligence / highest care]. [BAILEE] [did / did not] breach this duty — the burden of proof [shifted to BAILEE on proof of delivery + loss / was not triggered]. [SUB-BAILMENT]: [Sub-bailee is directly liable to BAILOR for [loss / damage]]. [BAILOR]'s remedies: [damages for the chattel's value / return of the chattel].

PART E — INDIGENOUS RIGHTS IN LAND

Template 16 — Aboriginal Title — Tsilhqot'in Proof and Content

USE WHEN	Use whenever an Indigenous group asserts a claim to land, or when government action on land involves an Indigenous title claim. Know the three-part proof test and the post-recognition infringement framework (NOT Sparrow — Tsilhqot'in is different and more demanding).
ISSUE	The issue is whether [INDIGENOUS GROUP] has established ABORIGINAL TITLE to [LAND], and if so, what rights that title confers and under what conditions the Crown can lawfully interfere with it.
RULE	TSILHQOT'IN NATION v BRITISH COLUMBIA 2014 SCC 44 (McLachlin CJ, unanimous): THREE-PART TEST FOR PROOF OF ABORIGINAL TITLE: (1) SUFFICIENCY OF OCCUPATION: The claimant group must have occupied the land prior to Crown sovereignty in a manner sufficient to ground title. NOT restricted to "small spots" (rejecting the BCCA's site-specific test). Regular use of a defined territory for hunting, fishing, trapping, foraging. Semi-nomadic peoples may prove title to their territorial range. (2) CONTINUITY: Where PRESENT occupation is relied upon to prove PRE-SOVEREIGNTY occupation, there must be continuity — not an unbroken chain, but evidence that the character of the group's relationship to the land has not fundamentally changed. (3) EXCLUSIVITY: The group must have exclusively occupied the territory at the time of Crown sovereignty — warning off trespassers; requiring permission for access; treaties with other groups; absence of challenges to occupancy. CONTENT OF ABORIGINAL TITLE: Right to EXCLUSIVE USE AND OCCUPATION for a variety of purposes; right to BENEFIT ECONOMICALLY from the land; right to DECIDE how the land is used; INHERENT LIMITATION: use must be consistent with the nature of the group's connection to the land — cannot destroy the land's future usefulness; INALIENABILITY: Cannot be sold or transferred to anyone except the Crown. INFRINGEMENT AFTER RECOGNITION (more demanding than Sparrow): Crown must first obtain CONSENT of the title holders. If no consent: Crown must demonstrate (a) a COMPELLING AND SUBSTANTIAL legislative objective, AND (b) action consistent with the Crown's FIDUCIARY DUTY — including meaningful consultation and accommodation. NOTE: This is NOT the Sparrow test.
CONCLUSION	[GROUP] [has / has not] established Aboriginal title to [TERRITORY] under the Tsilhqot'in three-part test. [SUFFICIENCY: established/not.] [CONTINUITY: established/not.] [EXCLUSIVITY: established/not.] [IF ESTABLISHED]: [GROUP] holds Aboriginal title conferring [exclusive use, economic benefit, and decision-making authority], subject to the inherent limitation and inalienability. The Crown's infringement [is / is not] justified — the Crown [obtained consent / demonstrated compelling objective + fiduciary consistency].

Template 17 — Duty to Consult — Pre-Recognition Spectrum

USE WHEN	Use when the Crown is taking action that might adversely affect an asserted (but not yet proven) Aboriginal right or title. The duty to consult arises BEFORE formal recognition — triggered by the strength of the claim and the severity of potential impact.
-----------------	---

ISSUE

The issue is whether the Crown [GOVERNMENT AUTHORITY] owed and fulfilled a DUTY TO CONSULT [INDIGENOUS GROUP] before undertaking [GOVERNMENT ACTION] on lands subject to an asserted (but unproven) Aboriginal title or rights claim.

RULE

THE DUTY TO CONSULT (Haida Nation v BC (Minister of Forests) 2004 SCC 73): Triggered whenever the Crown: (a) has actual or constructive knowledge of the potential existence of an Aboriginal right or title; AND (b) is contemplating action that might adversely affect it. BASIS: The duty arises from the honour of the Crown. THE SPECTRUM OF CONSULTATION: LOWER END (weak claim + minor potential impact): Brief notice, disclosure of information, and a reasonable opportunity to respond. MIDDLE: Reasonable opportunity to respond, consideration of concerns, documentation of how concerns were addressed. UPPER END (strong claim + serious potential impact): Full and meaningful consultation, potentially including ACCOMMODATION — modification of the proposed action. ACCOMMODATION does not mean veto — the Crown retains decision-making authority. RIGHTS SHORT OF TITLE — Van der Peet test (R v Van der Peet [1996] 2 SCR 507): A right to conduct a sacred ceremony on specific Crown lands does NOT require proof of exclusive possession — TRUE. Exclusive possession is the test for Aboriginal TITLE. A site-specific cultural/spiritual right is a right SHORT OF TITLE under Van der Peet.

CONCLUSION

The duty to consult [arose / did not arise] on these facts. The spectrum required [upper / middle / lower end] consultation. The Crown [fulfilled / failed to fulfill] its duty because [REASON]. [IF FAILED]: The Crown's action is subject to challenge — [injunction / declaration of invalidity / requirement for further consultation]. [Rights short of title]: A claim to [conduct ceremony / fish / gather] on specific Crown lands requires proof of integral cultural practice (Van der Peet), NOT exclusive possession.

Template 18 — Indian Act Reserves and Modern Treaties

USE WHEN

Use for questions about reserve land tenure, Certificates of Possession, Land Codes, and modern treaty rights. The 2025 syllabus expressly requires knowledge of the Indian Act CP provisions and the Nisga'a Final Agreement.

ISSUE

The issue is the nature of land rights on [RESERVE LANDS / NISGA'A LANDS] — specifically whether [PARTY] holds a Certificate of Possession, what rights that confers, and how those rights compare to provincial fee simple title.

RULE

RESERVE TENURE UNDER THE INDIAN ACT (RSC 1985, c I-5): Reserve land is CROWN LAND held by the Crown for the use and benefit of the Band. Individual Band members do NOT hold fee simple title to reserve land. CERTIFICATE OF POSSESSION (CP): Granted by the Minister on the Band Council's approval. A CP entitles the holder to use and possess a specific allotted parcel of reserve land. CPs can be transferred — but ONLY to other Band members or the Band itself. Not the same as fee simple. FRAMEWORK AGREEMENT ON FIRST NATIONS LAND MANAGEMENT ACT (1999): Allows First Nations that adopt a LAND CODE to take over management of their reserve lands from the Indian Act framework. NISGA'A FINAL AGREEMENT (SC 2000, c 7 [federal]; SBC 1999, c 2 [BC]): One of Canada's first comprehensive modern treaties creating Indigenous self-government with property rights. NISGA'A LANDS are held by the Nisga'a Nation in a form of fee simple under

their own legal system. The Nisga'a government has legislative authority over Nisga'a Lands under its Constitution and Land Act. Nisga'a fee simple ≠ provincial fee simple — Nisga'a Lands are subject to Nisga'a law, not provincial land law. NOTE: The BC implementing legislation is SBC 1999, c 2 (Statutes of British Columbia — new legislation enacted in 1999; not RSBC which designates revised/consolidated statutes).

CONCLUSION

[PARTY]'s rights in [LAND] are [Indian Act CP rights (possessory, transferable only to Band members) / Land Code rights (as defined by the Band's Land Code) / Nisga'a land rights (governed by Nisga'a law, not provincial property law; SBC 1999, c 2)]. These rights differ from provincial fee simple in: [alienability restrictions / absence of a provincial title registry / Crown underlying title on reserves / self-government authority on Nisga'a Lands].

PART F — EQUITABLE INTERESTS — TRUSTS AND CONSTRUCTIVE TRUST

Template 19 — Statute of Uses — Executed Uses and Creating the Modern Trust

USE WHEN	Use for any question involving the Statute of Uses, the creation of trusts in real property, or conveyances "to the use of" another. 2025 Sample Exam Q4 True/False #2 directly tests the Statute of Uses execution effect.
ISSUE	The issue is whether the Statute of Uses (1535) executes the use created by the instrument, and if so, what interest [PARTY] acquires — legal or equitable.
RULE	THE STATUTE OF USES (1535, Henry VIII): PURPOSE: Executed passive uses — transferring the legal title from the feoffee to uses (A) directly to the cestui que use (B). EFFECT: "To A to the use of B" → the Statute executes the use. A's legal title is STRIPPED. B receives LEGAL TITLE AUTOMATICALLY. A receives nothing. 2025 SAMPLE EXAM Q4 (TRUE/FALSE #2): "If Blackacre is devised to A and his heirs, to the use of B and her heirs, A acquires legal title in fee simple and B acquires equitable title in fee simple. TRUE or FALSE?" ANSWER: FALSE. The Statute of Uses EXECUTES this passive use. A's legal title is stripped. B acquires LEGAL TITLE in fee simple — not equitable. A gets nothing. HOW THE MODERN TRUST SURVIVED — THREE METHODS OF AVOIDANCE: (1) LEASES: The Statute did not apply to leaseholds (chattel reals). (2) PERSONALTY: The Statute applied only to freehold land. (3) ACTIVE DUTIES: Where A (the trustee) has active duties to perform — manage investments, pay income, make distributions — the Statute does NOT execute the use. A retains legal title because active management requires it. This is the foundation of the modern trust. EXHAUSTION — "UNTO AND TO THE USE OF": "To A and his heirs, unto and to the use of B and her heirs" — the Statute executes the FIRST use (A → B; B gets legal title). The phrase "unto and to the use of" exhausts the Statute. Any FURTHER use (C as beneficiary of B's interest) creates a modern trust — B holds legal title; C has equitable title (the second use cannot be executed by the already-exhausted Statute).
CONCLUSION	The Statute of Uses [executes / does not execute] the use in question. [IF EXECUTED]: [PARTY A] holds nothing; [PARTY B] holds LEGAL title — not equitable. [IF NOT EXECUTED]: [PARTY A] holds legal title as trustee; [PARTY B] holds equitable title as beneficiary. [EXHAUSTION]: The "unto and to the use of" language exhausts the Statute — [PARTY B] holds legal title; [PARTY C] holds equitable title under a modern trust.

Template 20 — Express and Resulting Trusts — Pecore Framework

USE WHEN	Use when one person transfers property to another without payment and the nature of the transaction — gift or resulting trust — is disputed. Pecore is the critical case: parent → adult independent child = presumption of resulting trust (not gift).
ISSUE	The issue is whether [PARTY A]'s gratuitous transfer of [PROPERTY] to [PARTY B] was a genuine GIFT (B owns beneficially) or whether B holds on RESULTING TRUST

for A (A retains the beneficial interest).

RULE

PECORE v PECORE 2007 SCC 17 (Rothstein J) — THE LEADING CANADIAN CASE: PRESUMPTION OF RESULTING TRUST (parent → adult independent child): Where a PARENT transfers property GRATUITOUSLY to an ADULT INDEPENDENT CHILD, the LAW PRESUMES the child holds on resulting trust for the parent's estate. The gift must be PROVEN — the burden falls on the person claiming a gift was intended. PRESUMPTION OF ADVANCEMENT (parent → minor child): A gratuitous transfer from parent to a MINOR child gives rise to a presumption of ADVANCEMENT — the law presumes a gift was intended. Parental duty to provide for minor children makes a gift the natural interpretation. REBUTTING THE PRESUMPTIONS: Both presumptions can be rebutted by evidence of the transferor's ACTUAL INTENTION at the time of the transfer. EXPRESS TRUST — THREE CERTAINTIES: (1) Certainty of INTENTION. (2) Certainty of SUBJECT MATTER. (3) Certainty of OBJECTS.

CONCLUSION

The transfer by [PARTY A] to [PARTY B] is presumed to be [a resulting trust (PARTY B holds on trust for PARTY A's estate) / an advancement (a gift to PARTY B)]. This presumption [can / cannot] be rebutted by the evidence of [PARTY A]'s actual intention at the time of transfer. [IF RESULTING TRUST PREVAILS]: [PARTY B] holds on resulting trust; the property forms part of [PARTY A]'s estate. [IF GIFT PREVAILS]: [PARTY B] owns the property beneficially and absolutely.

Template 21 — Remedial Constructive Trust — Kerr v Baranow and the Joint Family Venture

USE WHEN

Use for any property dispute between former common law partners or cohabiting couples. The most tested equitable doctrine in NCA Property. Sample Exam 1 Q4 is a pure JFV essay. Sample Exam 2 Q1 embeds it in a will question.

ISSUE

The issue is whether [CLAIMANT] has a claim in UNJUST ENRICHMENT against [RESPONDENT] arising from their domestic relationship, whether a JOINT FAMILY VENTURE existed, what remedy is available, and whether a REMEDIAL CONSTRUCTIVE TRUST should be imposed on specific property.

RULE

PETTKUS v BECKER 1980 SCC: Three elements of unjust enrichment: (1) enrichment of the defendant; (2) corresponding deprivation of the plaintiff; (3) absence of juristic reason. KERR v BARANOW 2011 SCC 10 (Cromwell J, unanimous) — THREE KEY CLARIFICATIONS: CLARIFICATION 1 — COMMON INTENTION RESULTING TRUST IS DEAD IN DOMESTIC DISPUTES: The "common intention resulting trust" has NO CONTINUING ROLE in domestic property disputes. Unjust enrichment (not resulting trust based on common intention) is the correct framework. (Note: Resulting trusts retain their traditional role in non-domestic contexts — Pecore applies.) CLARIFICATION 2 — JOINT FAMILY VENTURE (JFV) — FOUR FACTORS: Where two partners conducted their affairs as a JFV, the appropriate remedy for unjust enrichment is a proportionate share of ACCUMULATED WEALTH ("value survived"), not merely a fee-for-services calculation. THE FOUR FACTORS (none dispositive alone): (a) MUTUAL EFFORT: Did both partners pool their efforts and work toward shared goals? (b) ECONOMIC INTEGRATION: Commingling of assets; joint accounts; sharing financial risk; treating each other's income and assets as shared. (c) ACTUAL

INTENT: Did both parties understand their relationship as a joint enterprise? (d) PRIORITY OF THE FAMILY: Did one or both make career, mobility, or opportunity sacrifices for the family unit? CLARIFICATION 3 — THREE REMEDIES: (a) JFV + ACCUMULATED WEALTH → MONETARY AWARD: Claimant's proportionate share of the net wealth accumulated during the JFV. (b) NO JFV → QUANTUM MERUIT: Fee-for-services calculation. (c) CAUSAL LINK TO SPECIFIC PROPERTY + MONETARY AWARD INSUFFICIENT → REMEDIAL CONSTRUCTIVE TRUST on that specific property. MOORE v SWEET 2018 SCC 52: JFV is NOT a prerequisite to a remedial constructive trust. 2025 SAMPLE EXAM Q4 (TRUE/FALSE #4): "A remedial constructive trust is not available unless the partners conducted their lives as a JFV. FALSE." A JFV is NOT required for the constructive trust itself. What is required for the constructive trust specifically is (a) unjust enrichment established; (b) a causal nexus to specific property; (c) monetary award inadequate.

CONCLUSION

Unjust enrichment [is / is not] established (enrichment + deprivation + no juristic reason). A JFV [existed / did not exist] based on [FACTORS]. The remedy is: [proportionate monetary share of accumulated wealth (JFV — value survived) / quantum meruit (no JFV) / remedial constructive trust on SPECIFIC PROPERTY (causal link + monetary award insufficient)]. [CLAIMANT]'s entitlement: approximately [\$X / a [Y]% interest in SPECIFIC PROPERTY].

⚠ **EXAM TIP** — JFV ESSAY (Sample Exam 1 Q4 — 15 marks). Required: (1) definition of JFV; (2) the four factors; (3) how each factor is proved; (4) what happens when JFV is established (value survived remedy); (5) when a constructive trust applies instead of monetary award. Write with full case names throughout. Never say "constructive trust" without explaining it requires a causal link between contributions and specific property AND that a monetary award would be insufficient.

PART G — SERVITUDES — EASEMENTS, COVENANTS, AND PROFITS

Template 22 — Easements — Four Requirements and Creation Methods

USE WHEN	Use whenever a party claims a right to use another's land for a specific purpose. 2025 Sample Exam Q2(3): registered right of way — express grant of easement. 2022 Sample Exam Q2: easement by necessity.
ISSUE	The issue is whether [PARTY A] has a valid EASEMENT over [PARTY B]'s [SERVIENT TENEMENT] — specifically [DESCRIBE: a right of way / right of drainage / right of light / right of support] — and if so, how it was created and what its scope is.
RULE	RE ELLENBOROUGH PARK [1956] UK CA — FOUR REQUIREMENTS FOR A VALID EASEMENT: (1) There must be a DOMINANT TENEMENT (land that benefits) and a SERVIENT TENEMENT (land burdened). An easement cannot be held "in gross." (2) The easement must ACCOMMODATE AND SERVE the dominant tenement — provide genuine benefit to the land itself, not merely personal benefit to the owner. (3) The DOMINANT AND SERVIENT OWNERS must be DIFFERENT PERSONS — you cannot have an easement over your own land. (4) The right must be CAPABLE OF FORMING THE SUBJECT MATTER OF A GRANT — sufficiently certain and definite. CREATION — FOUR METHODS: (a) EXPRESS GRANT: By deed specifically creating the easement. Clear, registered, and binding on successors. (b) IMPLIED GRANT — NECESSITY: Where land is conveyed and left completely landlocked, a right of access is implied over the grantor's retained land. A COMMON GRANTOR who once owned both parcels and conveyed one without access is required. Wong v Beaumont Property Trust [1965] 1 QB 173 (UK CA): Easement implied where the premises cannot lawfully be used for their intended purpose without the right. (c) IMPLIED GRANT — WHEELDON v BURROWS RULE: On conveyance of part of an owner's land, quasi-easements exercised over the retained land that are (i) continuous and apparent; (ii) reasonably necessary for the use of the conveyed land; (iii) in use at the time of the conveyance — are impliedly granted to the grantee. (d) PRESCRIPTION (LOST MODERN GRANT): Long open use as of right for the prescriptive period. NOTE: The 2022 sample exam Q2 explicitly excludes prescriptive easements.
CONCLUSION	An easement [exists / does not exist] over [SERVIENT TENEMENT] benefitting [DOMINANT TENEMENT]. ALL FOUR RE ELLENBOROUGH PARK REQUIREMENTS: [met / not met]. CREATION: [express grant / necessity / Wheeldon v Burrows implied grant]. [SCOPE]: The easement permits [PARTY A] to [DESCRIBE PERMITTED USE] but NOT [DESCRIBE PROHIBITED USE — Harris v Flower rule: cannot extend to benefit non-dominant land].

Template 23 — Easement Scope, Harris v Flower Rule, and Termination

USE WHEN	Use after establishing that an easement exists (Template 22) to analyse whether the specific use is within the easement's scope, and whether the easement has been terminated.
ISSUE	The issue is whether [PARTY A]'s use of the easement over [SERVIENT TENEMENT] — specifically [DESCRIBE USE] — is within the SCOPE of the easement as granted,

and whether the easement has been TERMINATED.

RULE

SCOPE OF AN EASEMENT: An easement must be used **WITHIN THE PURPOSE** for which it was granted. *Barton v Raine* 1980 ONCA: The extent of the use authorised by the easement is determined by the purpose for which it was granted and the circumstances existing at the time of the grant. *Kaminskas v Storm* 2009 ONCA: Courts interpret the registered easement grant carefully — neither party may unilaterally expand or restrict it. *Laurie v Winch* [1953] 1 SCR 49: Where an easement is granted for access to a property and the dominant tenement is later subdivided, the easement may be used for the benefit of the subdivided parcels provided the use does not substantially increase the burden on the servient tenement beyond what was contemplated. **HARRIS v FLOWER RULE** (*Malden Farms v Nicholson* 1955 ONCA): An easement appurtenant to a dominant tenement **CANNOT BE USED TO BENEFIT LAND OTHER THAN THAT DOMINANT TENEMENT**. If the holder acquires additional land and seeks to use the easement to benefit both the original dominant land and the new land, the use of the easement to benefit the new land is **UNAUTHORIZED**. **TERMINATION OF EASEMENTS:** (1) **UNITY OF SEISIN:** When the same person acquires both the dominant and servient tenements, the easement merges and is extinguished. If the properties are later re-separated, the easement does **NOT** automatically revive. (2) **RELEASE:** The dominant owner releases the easement by deed. Cannot be done informally. (3) **ABANDONMENT** (*Bairn Corporation v Gabert* 2022 ABKB): Requires (a) non-use; **AND** (b) clear intention to permanently relinquish the right. **NON-USE ALONE IS NOT ABANDONMENT**.

CONCLUSION

[PARTY A]'s use of the easement [is / is not] within scope. **HARRIS v FLOWER:** Using the easement to benefit [ADDITIONAL NON-DOMINANT LAND] [is / is not] authorized. **TERMINATION:** The easement [has / has not] been terminated by [unity of seisin / release by deed / abandonment — non-use + clear intention to relinquish (Bairn)].

Template 24 — Restrictive Covenants — Tulk v Moxhay Framework

USE WHEN

Use whenever a negative obligation (a promise not to do something) is asserted against a successor in title. Always check: is the covenant **NEGATIVE IN SUBSTANCE?** (if positive — use Template 25.) Does the successor have **NOTICE?**

ISSUE

The issue is whether the covenant — that [PARTY A / ORIGINAL COVENANTOR] shall not [DESCRIBE PROHIBITED USE] — runs with the land in equity under *Tulk v Moxhay*, binding [PARTY B / SUCCESSOR IN TITLE to the SERVIENT LAND].

RULE

TULK v MOXHAY [1848] — THE FOUNDATION: A covenant runs with the land in equity to bind successors if **ALL FOUR REQUIREMENTS** are met: (1) The covenant must be **NEGATIVE IN SUBSTANCE** — it must restrict use of the covenantor's land, not require affirmative action. Test: Does the covenant require the covenantor to put their hand in their pocket (spend money) to perform it? If yes → positive covenant → does **NOT** run. "Shall not build above two storeys" = negative (restriction on use). **RUNS.** "Shall maintain the fence in good repair" = positive (obligation to spend money). **DOES NOT RUN.** (2) The covenant must be **MADE FOR THE BENEFIT OF LAND RETAINED** by the covenantee at the time of creation — a dominant tenement must

exist. (3) The covenant must have been **INTENDED TO RUN** with the covenantor's land. (4) The successor must have **NOTICE** of the covenant — actual, constructive, or registration notice. **RUNNING OF THE BENEFIT**: (a) **EXPRESS ANNEXATION**; (b) **IMPLIED ANNEXATION**; (c) **ASSIGNMENT**; (d) **BUILDING SCHEME** (Berry v Indian Park Association 1999 ONCA: Where a common developer sells lots in a subdivision subject to mutual covenants, a building scheme exists — all lot owners can enforce the covenants against each other as a reciprocal system).

CONCLUSION

The restrictive covenant [does / does not] run with the land to bind [PARTY B]. **ALL FOUR TULK v MOXHAY REQUIREMENTS**: (1) Negative in substance: [YES / NO]. (2) Benefit to retained dominant land: [YES / NO]. (3) Intended to run: [YES / NO]. (4) Notice: [YES / NO — registered / actual / constructive]. [IF ALL FOUR MET]: [PARTY B] is bound by the covenant. Remedy for breach: injunction (most appropriate) + damages. [IF ANY REQUIREMENT FAILS]: The covenant does not run.

Template 25 — Positive Covenants — The Canadian Rule and Bypass Options

USE WHEN

Use when a covenant **REQUIRES** the covenantor to do something (spend money, build, maintain) and the question is whether it binds a successor in title. Durham Condominium No. 123 v Amberwood is the clear authority: **POSITIVE COVENANTS DO NOT RUN WITH FREEHOLD LAND IN CANADA**.

ISSUE

The issue is whether a **POSITIVE COVENANT** — requiring [PARTY B / SUCCESSOR IN TITLE] to [DESCRIBE OBLIGATION: pay / maintain / build] — runs with [PARTY B]'s freehold land to bind [PARTY B] as successor to the original covenantor.

RULE

DURHAM CONDOMINIUM CORPORATION No. 123 v AMBERWOOD INVESTMENTS 2002 ONCA: **POSITIVE COVENANTS DO NOT RUN WITH FREEHOLD LAND IN CANADA** to bind successors in title at law or in equity. A positive covenant imposes an obligation to spend money or take affirmative action. The law treats this as a personal obligation between the original contracting parties — it does **NOT** attach to the land. A successor purchaser is **NOT** bound by the original covenantor's positive promise. **BYPASS OPTIONS**: (1) **CHAIN OF INDEMNITY**: On each sale of the burdened land, the vendor requires the purchaser to covenant personally to observe the obligation and indemnify the vendor. **PROBLEM**: The chain breaks if any link fails (e.g., insolvency of an intermediate owner). (2) **LONG LEASE** with positive covenants: Spencer's Case covenants touching and concerning the land run to assignees. Structure the transaction as a long lease rather than a fee simple conveyance. (3) **BENEFIT-BURDEN PRINCIPLE** (Halsall v Brizell; Berry v Indian Park Association): Equity may impose the burden of a positive covenant on a successor who also seeks to take the benefit associated with that burden. A person cannot pick and choose — they cannot take the benefit (use the road) while rejecting the associated burden (contribute to road maintenance costs). (4) **LAND CHARGE/ENCUMBRANCE**: Create a statutory charge or legal encumbrance securing the positive obligation.

CONCLUSION

The positive covenant [does / does not] run with [PARTY B]'s freehold land to bind [PARTY B] as successor. Durham Condominium: positive covenants do **NOT** run in Canada. [ORIGINAL COVENANTOR] remains personally liable under privity of contract. [SUCCESSOR] is [NOT BOUND / bound under the benefit-burden principle].

because SUCCESSOR also takes the associated benefit]. [BYPASS]: [Chain of indemnity / benefit-burden / long lease / land charge] [applies / does not apply] on these facts.

Template 26 — Profit à Prendre

USE WHEN

Use when one party has the right to take something from another's land — timber, minerals, fish, game. 2022 Sample Exam Q3: Musky was granted the right to drill for and excavate gravel, peat, sand, and granite = profit à prendre.

ISSUE

The issue is whether [PARTY A]'s right to [extract / drill for / take] [gravel / timber / minerals / fish] from [PARTY B]'s land constitutes a PROFIT À PRENDRE, and if so, what rights this confers and how it differs from a lease or easement.

RULE

PROFIT À PRENDRE: The right to take something from another's land — natural products (timber, minerals, fish, game, turf, sand, gravel). KEY CHARACTERISTICS: (1) Can be held IN GROSS (without a dominant tenement) — unlike an easement. (2) Must be granted by DEED. (3) Must be SPECIFIC as to what can be taken and the extent of the right. (4) May be exclusive or non-exclusive. DISTINGUISHING FROM AN EASEMENT: Easement = right to USE the land (e.g., cross it). Requires dominant tenement. Profit = right to TAKE from the land. Can be held in gross. DISTINGUISHING FROM A LEASE: Lease = exclusive POSSESSION of the land for a term. Creates a leasehold estate. Profit = right to take from the land — the owner retains possession. 2022 SAMPLE EXAM Q3: "The right to drill for and excavate gravel, peat, sand, and granite on or under [part of Blackacre]" = PROFIT À PRENDRE. Separately: "exclusive possession of [a designated portion of Blackacre] for a period of 25 years" = LEASE (exclusive possession + term = leasehold). Right of access over the surface = EXPRESS EASEMENT (appurtenant to the profit).

CONCLUSION

[PARTY A] holds [a profit à prendre / a leasehold / an express easement] over [PARTY B]'s land. PROFIT: Right to [take gravel, peat, sand, granite] from [designated portion]. LEASEHOLD: Exclusive possession of [designated portion] for [25 years]. EASEMENT: Right of access over the surface. [COAL EXCEPTION]: Fielding/Musky cannot grant rights to coal — Ramsey's original title excluded coal; Fielding took Blackacre without coal; neither can grant coal rights they do not have (nemo dat).

PART H — LEASES, LICENCES, AND SHARED OWNERSHIP

Template 27 — Lease vs Licence — Dual Nature of the Lease

USE WHEN	Use to establish whether an arrangement creates a LEASE (proprietary interest — exclusive possession) or a LICENCE (personal permission only). The distinction determines: whether the arrangement binds successors in title; whether the occupier can exclude others; the available remedies on termination.
ISSUE	The issue is whether the arrangement between [PARTY A] (landowner) and [PARTY B] (occupier) creates a LEASE — granting [PARTY B] exclusive possession and a proprietary interest — or merely a LICENCE — giving [PARTY B] personal permission to use the land without proprietary status.
RULE	LEASE — THREE ESSENTIAL ELEMENTS: (1) EXCLUSIVE POSSESSION: The tenant has the right to exclude everyone from the premises — including the landlord — for the duration of the tenancy. (2) TERM: A defined period (fixed or periodic). (3) RENT: Usually, though not strictly necessary — nominal consideration suffices. LICENCE — PERSONAL PERMISSION ONLY: No exclusive possession; no proprietary status; a licence does not create an interest in land; not enforceable against third parties. <i>Stiles v Tod Mountain Development Ltd</i> 1992 BCSC: KEY QUESTION: Who, as a matter of SUBSTANCE, has the right to exclude others? If the occupier controls access → LEASE. If the landowner can enter and exclude others at will → LICENCE. DUAL NATURE OF A LEASE: PROPRIETARY — binds the world (at common law); prior legal interest binds subsequent purchasers. Under Torrens, an unregistered lease may not bind a subsequent registered owner without notice (subject to short-term lease exceptions). CONTRACTUAL — the landlord-tenant relationship is governed by the lease contract. TYPES OF TENANCY: Term Certain; Periodic Tenancy (week-to-week, month-to-month, year-to-year); Tenancy at Will; Tenancy at Sufferance (holds over without landlord's consent — no proprietary status).
CONCLUSION	The arrangement between [PARTY A] and [PARTY B] is a [LEASE / LICENCE]. [LEASE]: [PARTY B] has exclusive possession + term + rent → proprietary interest in land. Binds [PARTY A]'s successors. Termination requires proper notice or court order. [LICENCE]: [PARTY B] has only personal permission. No proprietary status. Not binding on successors. Revocable (subject to contract damages if in breach of the licence agreement).

Template 28 — Assignment vs Sublease — Spencer's Case and Richfield

USE WHEN	Use whenever a tenant seeks to transfer their lease interest, or when covenants in a lease are sought to be enforced against a new tenant. 2025 Sample Exam Q3(a): two-part question on Spencer's Case covenants running to assignees, and Richfield on arbitrary refusal of consent.
ISSUE	The issues are: (1) whether [ORIGINAL TENANT]'s transfer of the lease constitutes an ASSIGNMENT (entire remaining term) or a SUBLEASE (less than the entire remaining term); (2) whether the covenants in the lease run to the ASSIGNEE under Spencer's Case; and (3) whether [LANDLORD] can refuse consent to the transfer under the

Richfield principles.

RULE

ASSIGNMENT vs SUBLEASE: ASSIGNMENT: The original tenant transfers the ENTIRE REMAINING TERM to the assignee. The assignee steps into the tenant's position with direct PRIVACY OF ESTATE with the landlord. SUBLEASE: The original tenant transfers LESS THAN the entire remaining term (even ONE DAY less). The original tenant retains privity of estate with the head landlord; the sub-tenant has no direct legal relationship with the head landlord. SPENCER'S CASE (1583): FOR A COVENANT TO RUN TO ASSIGNEES (binding successors): (1) TOUCH AND CONCERN the land: The covenant must relate to the MODE OF USE of the land or the LANDLORD-TENANT RELATIONSHIP. Examples that touch and concern: pay rent; maintain premises; keep clean; repair; not to assign without consent. (2) INTENT TO RUN: The parties must have intended the covenant to bind successors — implied from being in the lease document. *Merger Restaurants v D.M.E. Foods* 1990 MB CA: Spencer's Case applied in Canada. RICHFIELD (*Sundance Investment v Richfield Properties* 1983 ABCA): DEFAULT AT COMMON LAW: The TENANT HAS THE RIGHT TO ASSIGN FREELY. IF THE TENANT GIVES UP THAT RIGHT: The landlord may withhold consent ARBITRARILY AND UNREASONABLY — without giving any reasons. This is the OPPOSITE of the duty to act reasonably that English law imposes. The syllabus specifically highlights this rule as a point to memorise.

CONCLUSION

The transfer is an [ASSIGNMENT / SUBLEASE] of the lease. SPENCER'S CASE: The [maintenance / other] covenant runs to the [assignee] because it touches and concerns the land and was intended to bind successors. The replacement tenant IS bound by the covenant. RICHFIELD: Because the tenant covenanted not to assign without consent, [LANDLORD] may refuse consent arbitrarily — no obligation to be reasonable. [LANDLORD]'s refusal [is / is not] lawful.

Template 29 — Landlord Remedies on Tenant's Repudiation — Highway Properties

USE WHEN

Use whenever a tenant abandons, vacates, or repudiates a commercial lease. Highway Properties 1971 SCC gives landlords three options. Know all three — and when each is appropriate. Appears in 2025 Sample Exam Q3(2).

ISSUE

The issue is what remedies are available to [LANDLORD] following [TENANT]'s repudiation of the commercial lease — specifically [TENANT]'s [abandonment of the premises / unilateral declaration that the lease is null and void / cessation of rent payments and vacation of the premises].

RULE

HIGHWAY PROPERTIES LTD v KELLY, DOUGLAS AND CO 1971 SCC: A landlord whose commercial tenant REPUDIATES (abandons or denies the lease) has THREE OPTIONS: OPTION 1 — DO NOTHING: Do not accept the repudiation. Do not treat the lease as ended. Continue to demand performance of the lease terms. Claim RENT AS IT FALLS DUE each month. The lease remains on foot. OPTION 2 — ACCEPT THE REPUDIATION, TERMINATE, AND CLAIM FULL DAMAGES: Accept the repudiation (communicate acceptance — end the lease). The duty to MITIGATE arises immediately. Claim: (a) ARREARS of rent to date of acceptance; AND (b) DAMAGES for the remaining term — the difference between the lease rate and the market rate for the remaining term, discounted to present value. OPTION 3 — TERMINATE AND RE-

LET ON TENANT'S ACCOUNT: Terminate the lease and RE-LET the premises. Hold the original tenant liable for the **SHORTFALL** — the difference between the rent the new tenant pays and what the original tenant should have paid, for the remainder of the original term. **DAMAGES** = present value of the expected shortfall. **SIGNIFICANCE OF HIGHWAY PROPERTIES:** Before this case, landlords could not claim anticipatory damages for future rent on a commercial lease — they were restricted to demanding rent as it fell due (Option 1). Highway Properties brought commercial lease remedies into line with general contract law.

CONCLUSION

[LANDLORD] may elect among the three Highway Properties options: (1) Do nothing and sue for rent monthly; (2) Accept the repudiation, terminate, claim arrears + full future damages (duty to mitigate); (3) Terminate and re-let on [TENANT]'s account. [LANDLORD]'s best option given [the facts] is likely [OPTION 2 / OPTION 3] because [reason — remaining term length; likelihood of re-letting; mitigating the damages]. [TENANT]'s argument of landlord's breach [is / is not] a valid defence.

PART I — SHARED OWNERSHIP AND PRIORITIES

Template 30 — Joint Tenancy — Four Unities and Severance

USE WHEN	Use whenever two or more persons hold property together — determine whether it is JT or TIC, and whether any severance has occurred. The 2025 Sample Exam Q1 Clause 5 involves a joint tenancy with a defeasance condition — a complex severance + condition analysis.
ISSUE	The issues are: (1) whether [PARTIES] hold [PROPERTY] as JOINT TENANTS or TENANTS IN COMMON; (2) whether the joint tenancy (if any) has been SEVERED; and (3) the consequences for the right of survivorship.
RULE	JOINT TENANCY — FOUR UNITIES ("PITT") must ALL be present: (1) POSSESSION: Each joint tenant entitled to possession of the whole. (2) INTEREST: Same quantum and duration of interest for each. (3) TITLE: Same instrument — title acquired from the same deed/will at the same time. (4) TIME: Interests vest simultaneously. EXAM ASSUMPTION: "In a devise or transfer of land to two or more persons, the devisees or transferees hold as TENANTS IN COMMON unless a contrary intention appears in the instrument." → DEFAULT IS TIC. Joint tenancy only if: (a) expressly stated ("as joint tenants"), AND (b) all four unities present. RIGHT OF SURVIVORSHIP (IUS ACCRESCENDI): On death of a joint tenant, their interest automatically accrues to the surviving joint tenant(s). CANNOT be defeated by will. SEVERANCE (Williams v Hensman [1861]) — THREE METHODS: (1) UNILATERAL ACT ON OWN SHARE: Any alienation of a joint tenant's interest — sale, mortgage, assignment. Creates a TIC between the new holder and remaining joint tenants (who remain JT inter se). Does NOT require consent of the other joint tenants. Jansen v Niels Estate 2017 ONCA: Execution of a mortgage by one joint tenant severs the joint tenancy. (2) MUTUAL AGREEMENT: All joint tenants agree to sever — need not be in writing, but must be clearly evidenced. (3) COURSE OF CONDUCT: Conduct by all joint tenants showing mutual recognition that shares are to be treated as separate (e.g., negotiations for partition; commencement of partition proceedings). CANNOT SEVER BY WILL: A will has no effect on a joint tenancy — the will operates only at death, at which point if the tenancy has not been severed, the right of survivorship has already operated (Hansen Estate v Hansen 2012 ONCA). Robb v Robb 1993 BCSC: Commencement of divorce proceedings + treating property as a divisible matrimonial asset = course of conduct severance.
STEP 1 — JT or TIC?	[ALL FOUR UNITIES + EXPRESS LANGUAGE]: Joint tenancy. Right of survivorship applies. [ANY UNITY MISSING or NO EXPRESS LANGUAGE]: Tenancy in common (exam default). [INCONSISTENCY CHECK]: A gift "to David as to one-third and Richard as to two-thirds as joint tenants" — the fractional shares are INCONSISTENT with joint tenancy (which requires unity of interest = equal shares). This is a classic exam trap: the court must resolve the inconsistency. Likely outcome: tenancy in common in the specified proportions. Identify this inconsistency.
STEP 2 — Severed?	[UNILATERAL ACT]: Because [JOINT TENANT A] [mortgaged / sold / transferred] their interest, the joint tenancy was severed (Jansen v Niels Estate — mortgage severs under the first Williams v Hensman method). [THIRD PARTY] holds as a tenant in common; the remaining joint tenants (if more than two total) continue as joint tenants inter se. [MUTUAL AGREEMENT]: Written agreement treating interests as separate shares severs the joint tenancy at the date of the agreement. [COURSE OF

CONDUCT]: Commencement of partition proceedings / divorce proceedings treating property as divisible asset (Robb v Robb). [BY WILL (FAILS)]: A will purporting to sever by will alone — a will operates only at death, at which point the right of survivorship has already operated. The will is ineffective to sever a joint tenancy (Hansen Estate v Hansen).

CONCLUSION

[PARTIES] hold [PROPERTY] as [JOINT TENANTS (all four unities + express intent) / TENANTS IN COMMON (default exam assumption; unity missing; no express JT language)]. [IF JOINT TENANCY]: Right of survivorship applies; [JOINT TENANT]'s interest accrues automatically to surviving joint tenants on death. [IF SEVERED]: Severance by [unilateral act / mutual agreement / course of conduct] converted the joint tenancy to a tenancy in common as of [DATE]. [DECEASED JOINT TENANT]'s share now passes through their estate.

△ **EXAM TIP** — SEVERANCE BY WILL IS IMPOSSIBLE: Hansen Estate v Hansen 2012 ONCA is the most commonly misunderstood severance principle. A will does not sever a joint tenancy — it cannot, because a will speaks at death, and by death the right of survivorship has already operated. The only ways to sever are: (1) unilateral alienation (sale, mortgage, assignment of one's share — Jansen); (2) written agreement to sever (all joint tenants); (3) course of conduct showing mutual recognition of separate shares (Robb). Taking no action to sever = right of survivorship operates on death.

Template 31 — Priorities — Four Common Law Contests and the Bona Fide Purchaser

USE WHEN

Use whenever two parties claim competing interests in the same land and there is NO registration system (or to establish the baseline before applying registration rules). Always analyse priority AT COMMON LAW first, then layer on the relevant registration system (Template 32).

ISSUE

The issue is which of [PARTY A]'s and [PARTY B]'s interests in [PROPERTY] takes priority — having regard to the nature of each interest (legal or equitable) and the chronological order of their creation.

RULE

THE FOUR PRIORITY CONTESTS AT COMMON LAW: CONTEST 1 — PRIOR LEGAL vs SUBSEQUENT LEGAL: Prior legal prevails. Nemo dat quod non habet — you cannot give what you do not have. If A conveyed full legal title to B, A has nothing left to convey to C. CONTEST 2 — PRIOR EQUITABLE vs SUBSEQUENT EQUITABLE: Prior equitable generally prevails (qui prior est tempore potior est iure). EXCEPTION: Where equities are equal, later conduct may tip the balance. CONTEST 3 — PRIOR LEGAL vs SUBSEQUENT EQUITABLE: Prior legal prevails — the legal owner takes free of a subsequent equitable interest. EXCEPTION: Estoppel. CONTEST 4 — PRIOR EQUITABLE vs SUBSEQUENT LEGAL (THE KEY CONTEST): The subsequent legal estate prevails IF the subsequent legal owner is a BONA FIDE PURCHASER FOR VALUE WITHOUT NOTICE. FOUR REQUIREMENTS ("EQUITY'S DARLING"): (1) PURCHASER: Must have acquired the legal interest by purchasing it — not as a donee or through succession. (2) GOOD FAITH: No fraud; honest dealing. (3) FOR VALUE: Must have given money or money's worth — love and affection is NOT value. (4) WITHOUT NOTICE of the prior equitable interest — THREE FORMS: (a) ACTUAL NOTICE: Actual knowledge. (b) CONSTRUCTIVE NOTICE: Knowledge

that would have been obtained by making the inquiries that a reasonable purchaser in the same position would make — inspection of the property; examination of the title deeds; inquiry of persons in occupation. (c) IMPUTED NOTICE: Knowledge of the purchaser's solicitor or agent during the transaction is imputed to the purchaser. NOTE: Under Torrens, constructive notice does NOT defeat indefeasibility — this distinguishes the common law rule from Torrens.

STEP 1 — Classify

CLASSIFY EACH INTEREST AS LEGAL OR EQUITABLE: Because [PARTY A] holds [a legal fee simple / an equitable interest under a trust / an equitable restrictive covenant / a legal lease / an equitable mortgage], and [PARTY B] holds [classify similarly], the contest is [CONTEST NUMBER — prior legal vs subsequent equitable / prior equitable vs subsequent legal / etc.].

STEP 2 — Apply Rule

[CONTEST 1 — both legal]: Because [PARTY A]'s legal interest was created [BEFORE] [PARTY B]'s legal interest, and A had the right to create the interest at the time, A's prior legal interest prevails. B takes nothing (or takes subject to A's interest) because A had already transferred the relevant right. [CONTEST 4 — prior equitable vs subsequent legal]: Because [PARTY A] holds a prior equitable interest and [PARTY B] subsequently acquired the legal estate, the critical question is whether [PARTY B] qualifies as a bona fide purchaser for value without notice.

STEP 3 — BFP Analysis

PURCHASER: Because [PARTY B] [paid \$X for the legal estate / received it as a gift → NOT a purchaser → BFP defence fails]. GOOD FAITH: Because [PARTY B] [had no knowledge of fraudulent dealing / participated in fraud → good faith NOT established]. FOR VALUE: Because [PARTY B] paid [the full market price / nominal consideration / no consideration]. WITHOUT NOTICE: (a) ACTUAL NOTICE: [PARTY B] [had / did not have] actual knowledge of [PARTY A]'s equitable interest. (b) CONSTRUCTIVE NOTICE: [PARTY B] [inspected the property and would have seen [PARTY A] in occupation / failed to inspect]. (c) IMPUTED NOTICE: [PARTY B]'s solicitor [knew / did not know] of the equitable interest.

CONCLUSION

The priority contest is [CONTEST NUMBER]. [PARTY A]'s [prior legal / prior equitable] interest [prevails over / is defeated by] [PARTY B]'s [subsequent equitable / subsequent legal] interest. [IF CONTEST 4 — BFP ANALYSIS]: [PARTY B] [is / is not] a bona fide purchaser for value without notice because [reason — notice was / was not established]. [IF BFP]: [PARTY B]'s subsequent legal estate prevails. [IF NOT BFP]: [PARTY A]'s prior equitable interest prevails.

Template 32 — Torrens Title — Indefeasibility, Fraud Exception, and the Curtain

USE WHEN

Use for all priority disputes under a land titles (Torrens) registration system. 2022 Sample Exam Q5: A's lease vs C's Torrens registration without notice. 2025 Q4 True/False #5: unregistered first-in-time vs registered second-in-time. Both test the Torrens curtain principle.

ISSUE

The issue is whether [REGISTERED PARTY]'s registered title under the Torrens system is INDEFEASIBLE — immune from challenge by [CLAIMANT] who holds a prior

but unregistered interest — and whether the fraud exception applies.

RULE

THE TORRENS SYSTEM — THREE CARDINAL PRINCIPLES: (1) THE MIRROR: The register reflects and guarantees the true state of title. What is on the register is authoritative. (2) THE CURTAIN: Purchasers need not look behind the register. Prior unregistered interests generally cannot be asserted against a registered purchaser. (3) THE NET (ASSURANCE FUND): Where errors in the register cause loss to an innocent party, the state compensates. INDEFEASIBILITY — TWO COMPETING APPROACHES: (a) IMMEDIATE INDEFEASIBILITY: The registered owner gets indefeasible title the MOMENT they register — even if they dealt with a fraudster, as long as they themselves are not the fraudster and did not know of the fraud. ONTARIO ADOPTS THIS APPROACH. (b) DEFERRED INDEFEASIBILITY: The FIRST purchaser from a fraudster does NOT get indefeasible title. Only the SECOND purchaser (who dealt with the first — who had a registered title, however obtained) gets indefeasible title. FRAUD EXCEPTION (applies even under immediate indefeasibility): A person who obtained registration by FRAUD or who had ACTUAL KNOWLEDGE of fraud does NOT get indefeasible title. Fraud = actual dishonest conduct by the registered owner themselves. CONSTRUCTIVE NOTICE of fraud is NOT enough. THE CURTAIN PRINCIPLE AND UNREGISTERED INTERESTS: An unregistered interest is generally NOT binding on a subsequent registered owner. 2025 Q4 True/False #5: "In the Torrens system, an unregistered first-in-time property interest does NOT have priority over a registered second-in-time interest. TRUE." EXCEPTIONS (statutory short-term lease exception): Many Torrens statutes protect short-term leases (3 years or less) even without registration — particularly where the tenant is in actual occupation. 2022 SAMPLE EXAM Q5: A leased to B for 10 years (legal lease). A sold to C without notice of the lease. Under Torrens — C registers. B's lease is NOT registered. Under the curtain principle, C takes free of B's unregistered 10-year lease (does not qualify as a short-term lease). Under common law (no Torrens) — B's prior legal lease binds C regardless of notice.

STEP 1 — Torrens or Deeds?

Because [PROPERTY] is registered under [the Land Titles Act / the Registry Act], the [Torrens / deeds registration] system applies. [TORRENS]: The mirror, curtain, and net principles apply. Indefeasibility is the governing concept. [DEEDS REGISTRATION]: Race, notice, or race-notice rules apply. NOTE — ONTARIO: Most Ontario land has now been converted to the Land Titles (Torrens) system. Most Ontario land is governed by Torrens indefeasibility principles, not the Registry Act notice rules. When a question specifies the registration system, apply the rules for that system.

STEP 2 — Registered?

Because [PARTY C] [is / is not] the registered owner on the Land Titles register, [PARTY C] [does / does not] benefit from indefeasibility. [IF REGISTERED]: Proceed to the fraud exception analysis. [IF NOT REGISTERED]: [PARTY C] does not benefit from Torrens indefeasibility.

STEP 3 — Fraud Exception?

Because [PARTY C] [was / was not] involved in fraud and [had / did not have] ACTUAL KNOWLEDGE of [PARTY B]'s prior interest at the time of registration, the fraud exception [applies / does not apply]. [FRAUD EXCEPTION APPLIES]: [PARTY C]'s registration is set aside — [PARTY C] does not get indefeasible title. [PARTY B]'s prior interest is enforceable against [PARTY C]. [FRAUD EXCEPTION DOES NOT APPLY]: [PARTY C] gets indefeasible title. The Curtain principle protects [PARTY C] from [PARTY B]'s prior unregistered interest.

**STEP 4 —
Curtain
Principle**

Because [PARTY B]'s [lease / trust / easement / mortgage] was NOT registered on the Torrens register at the time [PARTY C] registered, [PARTY C]'s registered title is [generally] free of [PARTY B]'s unregistered interest — the Curtain principle. [APPLY TO 2025 Q4 T/F #5]: "An unregistered first-in-time property interest does not have priority over a registered second-in-time interest." → TRUE under Torrens. The register governs; an unregistered interest does not bind the registered owner (absent fraud exception and absent specific statutory exceptions). [SHORT-TERM LEASE EXCEPTION]: Because [PARTY B] holds a [3-year / short-term] lease and is in ACTUAL OCCUPATION, [PARTY B]'s lease [may / may not] be protected even without registration under the statutory short-term lease exception. [10-YEAR LEASE — NOT SHORT-TERM]: A 10-year unregistered lease does NOT qualify for the short-term exception — [PARTY C] takes free.

**STEP 5 —
Assurance
Fund**

Because [PARTY B]'s interest was [defeated / wrongfully removed from the register due to error or fraud], [PARTY B] may apply to the Assurance Fund for compensation for the loss suffered as a result of the Torrens system's protection of [PARTY C]'s registered title. The fund compensates persons wrongfully deprived of their interest through the operation of the registration system.

CONCLUSION

Under the Torrens system: [PARTY C]'s registered title [is / is not] indefeasible. FRAUD EXCEPTION: [PARTY C] [did / did not] commit fraud or have actual knowledge of fraud → [PARTY C]'s title [is / is not] indefeasible. CURTAIN PRINCIPLE: [PARTY B]'s unregistered [lease / equitable interest] [is / is not] binding on [PARTY C] — [PARTY C] takes [free / not free] of the unregistered interest. [SHORT-TERM LEASE EXCEPTION: applies / does not apply]. [ASSURANCE FUND: available to PARTY B to claim compensation for the extinguished interest].

⚠ **EXAM TIP** — TORRENS vs COMMON LAW — ALWAYS DISTINGUISH. Both sample exam Q5s (2022) and Q4 T/F #5 (2025) require distinguishing Torrens from common law. At COMMON LAW: prior legal interests bind the world (B's 10-year lease binds C regardless of notice). Under TORRENS: C's registered title prevails over B's unregistered lease (curtain principle; subject to fraud exception and short-term lease statutory exceptions). Always answer both common law AND Torrens if the question asks for both.

— END OF 32 TEMPLATES —

© 2026 The NCA Hub | www.thencahub.com | All Rights Reserved